Aman Gupta vs State on 11 December, 2023

Author: Amit Bansal

Bench: Amit Bansal

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3648/2023, CRL.M.(BAIL) 1638
AMAN GUPTA
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STATE
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CORAM:
HON'BLE MR. JUSTICE AMIT BANSAL
OR

% 11.12.2023

1. By way of the present application, the applicant seeks regular bail in FIR No.515/2022 registered at Police Station KN Katju Marg under Sections 420/467/468/471/34 of the Indian Penal Code, 1860 (IPC).

2. Earlier, the anticipatory bail application filed on behalf of the applicant was dismissed by this Court vide order dated 6th September, 2023. Pursuant thereto, the applicant surrendered and has since been in judicial custody.

3. The applicant applied for regular bail before the learned Metropolitan This is a digitally signed order.

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interrogation of the applicant was required.

4. Subsequently, another regular bail application filed by the applicant before the learned Sessions Court was rejected vide order dated 26th October, 2023 on the same ground that the investigation qua the applicant was not complete and that chances of tampering of material evidence could not be ruled out.

5. Counsel for the applicant submits that the Chargesheet has now been filed on 9th December, 2023 and, therefore, there is no impediment in the grant of bail.

6. Status Report has been handed over in Court and the same is taken on record.

7. Learned APP opposes the grant of regular bail on the ground that the charges against the applicant are serious in nature. He further submits that bail should not be granted in the present case as it involves economic offences which lead to loss to the National Exchequer.

8. Counsel for the complainant also vehemently opposes the grant of bail. He submits that the substantial portion of the cheated amount is yet to be recovered from the applicant and custodial interrogation of the applicant is required to unravel the money trail and recover the money alleged to be cheated.

9. I have heard the counsels for the parties and perused the material on record.

10. It is a settled principle of law that the object of bail is to secure the This is a digitally signed order.

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> "21. In bail applications, generally, it has been laid down from the earliest times that the object of bail is to secure the appearance of the accused person at his trial by reasonable amount of bail. The object of bail is neither punitive nor preventative. Deprivation of liberty must be considered a punishment, unless it is required to ensure that an accused person will stand his trial when called upon. The courts owe more than verbal respect to the principle that punishment begins after conviction, and that every man is deemed to be innocent until duly tried and duly found guilty.
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> 22. From the earliest times, it was appreciated that detention in custody pending completion of trial could be a cause of great hardship. From time to time, necessity demands that some unconvicted persons should be held in custody pending trial to secure their attendance at the trial but in such cases, "necessity"

is the operative test. In this country, it would be quite contrary to the concept of personal liberty enshrined in the Constitution that any person should be punished in respect of any matter, upon which, he has not been convicted or that in any circumstances, he should be deprived of his liberty upon only the belief that he will tamper with the witnesses if left at liberty, save in the most extraordinary circumstances."

11. In respect of the present FIR, the applicant has been in judicial custody for about 90 days. It is also an admitted position that the investigation qua the applicant is complete and that the Chargesheet has already been filed.

12. Insofar as the loss caused to the National Exchequer is concerned, the present FIR is not in relation to GST fraud and pertains to offences related to This is a digitally signed order.

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13. In the present case, the evidence is primarily documentary in nature and already within the custody of the prosecution, therefore, there is no likelihood of the applicant tampering with the evidence or influencing the witnesses, if released on bail.

14. Considering the totality of aforesaid facts and circumstances and since the trial is likely to take some time, the applicant cannot be kept under incarceration for an indefinite period of time. Therefore, this Court considers it fit to grant bail to the applicant.

15. For the forgoing reasons, the application is allowed and the applicant is directed to be released on furnishing a personal bond in the sum of Rs.25,000/- with two sureties of the like amount subject to the satisfaction of the Trial Court and further subject to the following conditions:

i. The applicant shall deposit his passport with the Investigating Officer (IO).

ii. The applicant shall not leave the country without the prior permission of the Court.

iii. The applicant shall appear before the FSL on 8th January, 2024, when his voice sample is to be taken or on any further date as may be directed.

iv. The applicant shall appear before the Trial Court as and when the matter is taken up for hearing.

v. The applicant shall join investigation as and when called by the IO concerned.

vi. The applicant shall provide his latest/fresh mobile number(s) to the IO concerned, which shall be kept in working condition at all times and This is a digitally signed order.

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vii. The applicant shall provide his permanent address to the Trial Court.

The applicant shall intimate the Court by way of an affidavit and to the IO regarding any change in his residential address. viii. The applicant shall not indulge in any criminal activity and shall not communicate with or come in contact with any of the prosecution witnesses or tamper with the evidence of the case.

16. Needless to state that any observations made herein are purely for the purposes of deciding the question of grant of bail and shall not be construed as an expression on the merits of the case or on the issue of alleged GST evasion.

17. Accordingly, the application is disposed of along with all pending applications.

18. Copy of this order be given to the counsel for the applicant dasti under the signature of the Court Master.

AMIT BANSAL, J.

DECEMBER 11, 2023 rt This is a digitally signed order.

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